

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 01/28/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C25-01696
CASE NAME: PAUL RAPIER VS. CHARHOUSE PUBLIC SCHOOLS
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) was scheduled to trail the discovery motion calendared for January 28, 2026. That motion was vacated. This CMC is continued to July 20, 2026 at 8:30 a.m..

Notice is given that this case is re-assigned to Hon. Julia Campins, Dept. 10, for all purposes effective March 1, 2026. The parties are ordered to appear via zoom or in person in Department 10 on July 20, 2026 for the CMC. No appearance is required on January 28, 2026.

2. 9:00 AM CASE NUMBER: C25-01474

CASE NAME: FINWISE BANK VS. DEBRA VERNON

***FURTHER CASE MANAGEMENT CONFERENCE STATUS OF ARBITRATION / MOTIN FOR WRIT OF POSESSION.**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) is scheduled to trail the motion calendared for January 28, 2026. This CMC is continued to July 20, 2026 in Department 10 at 8:30 a.m. The parties may appear via zoom or in person.

The Court provides notice that this case is re-assigned to Hon. Julia Campins, Dept. 10, for all purposes effective March 1, 2026. The parties are ordered to appear via zoom or in person in Department 10 on July 20, 2026 for the CMC.

3. 9:00 AM CASE NUMBER: C25-00559

CASE NAME: MARC TRAPANI VS. ANASTACIO CERO

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) is scheduled to trail the motion calendared for January 28, 2026. The Motion is **denied** without prejudice for lack of jurisdiction over Defendants. This CMC is continued to July 21, 2026 in Department 10 at 8:30 a.m. The parties may appear via zoom or in person. No appearance is required on January 28, 2026.

The Court provides notice that this case is re-assigned to Hon. Julia Campins, Dept. 10, for all purposes effective March 1, 2026. The parties are ordered to appear via zoom or in person in Department 10 on July 21, 2026 for the CMC.

4. 9:00 AM CASE NUMBER: C25-01869

CASE NAME: JOHN BENNETT STUDHOLME VS. SUBARU CORPORATION,

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) is scheduled to trail the motion calendared for January 28, 2026. This CMC is continued to July 21, 2026 in Department 10 at 8:30 a.m. The parties may appear via zoom or in person.

The Court provides notice that this case is re-assigned to Hon. Julia Campins, Dept. 10, for all purposes effective March 1, 2026. The parties are ordered to appear via zoom or in person in Department 10 on July 21, 2026 for the CMC.

Law & Motion

5. 9:00 AM CASE NUMBER: C22-00861

CASE NAME: GINGER CONRAD VS. ROWYN DE WITT

*HEARING ON MOTION IN RE: INTENT TO MOVE FOR NEW TRIAL FILED BY PLAINTIFF: GINGER CONRAD

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Ginger Conrad's ("Plaintiff") Motion for New Trial ("Motion") is **denied**.

Background

Plaintiff Ginger Conrad files this instant Motion for New Trial on the grounds that there was insufficient evidence to justify the verdict and jury findings. After a five-day trial where Plaintiff and Defendant presented percipient and expert witness testimony on the issues of liability and damages, the jury had concluded that while Defendant Rowyn De Witt ("Defendant") was negligent, her negligence was not a substantial factor in causing any harm to the Plaintiff. Plaintiff's Motion is supported by the 633-page Declaration of Counsel Che Hashim, which attaches the relevant certified trial transcripts of the witness testimony.

Defendant opposes the Motion on the grounds that sufficient evidence supports the jury's finding that Defendant's negligence was not a substantial factor in causing harm to the Plaintiff. Defendant maintains that the trial record is replete with substantial evidence supporting the defense verdict. The jury was presented with evidence that: (1) Plaintiff did not hit her head; (2) the forces involved were too low to cause a concussion; (3) her vision issues were caused by an incorrect eyeglass prescription, not trauma; and (4) her subjective complaints were manifestations of severe life stressors, not this minor accident. Defendant also attaches 632 pages in Counsel's declaration which contains the certified trial transcripts of the pertinent witness testimony.

The Court reviewed Plaintiff's reply brief filed on January 21, 2026.

Analyses

A court may grant a new trial only on statutory grounds that materially affect the substantial rights of the moving party. *Ajaxo, Inc. v. E*Trade Fin. Corp.* (2020) 48 Cal.App.5th 129, 187; *Oakland Raiders v. National Football League* (2007) 41 Cal.4th 624, 633. The grounds relevant to this motion are set forth in Cal. Code of Civ. Proc. § 657, which provides, in pertinent part: "The verdict may be vacated ... and a new or further trial granted ... for any of the following causes, materially affecting the substantial rights of such party: 1. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law."

Code Civ. Proc. § 656 clarifies that a "new trial is a reexamination of an issue of fact in the same court after a trial and decision by a jury, court or referee." "Insufficiency of the evidence as ground for a new trial means the insufficiency that arises in the mind of the trial judge when he weighs the conflicting evidence and finds that which supports the verdict and judgment weighs, in his opinion, less than that which is opposed to it. *Musgrove v. Ambrose Properties* (1978) 87 Cal.App.3d 44, 55.

In sum, Section 657 empowers the trial court judge to grant a new trial only when, after weighing the evidence, the Court is convinced from the entire record, and reasonable inferences drawn from the record, that the jury clearly should have reached a different verdict. (Id.) (emphasis added).

While trial courts possess broad discretion to grant a motion for a new trial, the statute, its legislative history, and pertinent case law all indicate that such a remedy constitutes extraordinary relief. The California Supreme Court has noted that the trial court must be clearly satisfied that the award of the jury is clearly wrong, and not merely subject to a difference of opinion. See *Green v. Soule* (1904) 145 Cal. 96, 102. Thus, "[a] trial court may deny a motion for a new trial and may refuse to reassess damages in an action when it is apparent that the jury resolved conflicting evidence in making its award of damages." *Torres v. City of Los Angeles, et al.* (1962) 58 Cal.2d 35, 53-54. Moreover, if the matter is not directly related to the crucial issues of the case, a new trial generally should not be granted. See *English v. Lin* (1994) 26 Cal.App. 4th 1358, 1369.

Upon thorough review of the over 1200 pages of trial testimony, this Court finds that the jury properly considered the evidence in arriving at its verdict against Plaintiff and for Defendant. The significant weight of the evidence supports a finding that the accident that occurred on June 4, 2020 resulted in a minor impact. Both parties were ambulatory at the scene, as were their passengers. Plaintiff did not appear to be injured and continued to drive after the accident to obtain ice cream. The jury considered the expert opinion of Dr. Benjamin Ewers that the change in velocity (Delta-V) was only 7.4 or 7.5 miles per hour. The g-force potentially resulting from the accident was 12-14 g-forces, which is substantially less than the 80g threshold that would be required for a concussion. The Court further notes that the airbags did not deploy in either Plaintiff or Defendant's vehicle, and the damage to Plaintiff's Prius was consistent with the cost of replacing the bumper. Plaintiff did not lose consciousness, did not hit her head, and did not display any signs consistent with a concussion at her urgent care visit later that evening.

A further review of the testimony and evidence also supports the jury's finding that Plaintiff did not suffer permanent neurocognitive injuries as a result of the incident. The evidence at trial demonstrated that Plaintiff continued to read as a voracious reader, plan trips, including hikes, and participated vigorously in her role-playing games without difficulty. There was ample evidence, including expert testimony, that the "convergency insufficiency" experienced by Plaintiff may have been attributable to causes other than the incident, including an over-prescription of her glasses 18 months before the accident. The evidence elicited during the trial also painted a complete picture that the stressors that affected Plaintiff's post-accident life appeared to have been, in part, attributable to pre-existing difficulties in her life, including divorce and raising her teen-aged child as a single mother. It was reasonable for the jury to infer that not all of her post accident stress was attributed solely to the low-impact accident that occurred in the Summer of 2020.

Finally, the Court finds that the jury was able to evaluate the evidence about Plaintiff's claim for lost wages and loss of earning capacity to determine that it was not supported by credible evidence. At most, plaintiff worked part-time earning a modest hourly wage that did not exceed \$25-30 per hour. Her employer's fabrication of her alleged wage loss damaged Plaintiff's credibility. Moreover, the evidence of loss of earning capacity was rejected by the jury completely, given that Plaintiff had not considered entering a career in law enforcement dispatching.

In weighing the evidence presented to the jury, the Court finds that there was sufficient evidence to support a defense verdict in this case. Accordingly, the Court is convinced from reviewing the trial transcript and the record that reasonable inferences drawn from the record allowed the jury reached its verdict accordingly. There was no insufficiency of the evidence that leads this Court to conclude that the jury should have come to a different decision.

After reviewing the evidence in light of the statutory and decisional authority, the Court finds good cause to deny Plaintiff's Motion for New Trial.

Ruling

Plaintiff Ginger Conrad's Motion for New Trial is **denied**. Defendant's counsel is ordered to prepare and e-file a conforming order, attaching this tentative ruling, within five (5) days from the date of this hearing.

6. 9:00 AM CASE NUMBER: C22-02332
CASE NAME: KATTY LOPEZ VS. JAMES MARTIN
*HEARING ON MOTION IN RE: SET ASIDE ORDER OF DISMISSAL
FILED BY: LOPEZ, KATTY
TENTATIVE RULING:

Summary

Plaintiff Katy Lopez's Motion to Set Aside Dismissal is **granted** as set forth in this tentative ruling.

Background

In this litigation, filed on October 31, 2022, Plaintiff Katy Lopez alleges causes of action for premises liability against Defendant James B. Martin for an incident that occurred on October 30, 202. Plaintiff claims that she tripped and fell on a raised sidewalk area that is alleged to be owned, maintained, managed or operated by Defendant. Defendant has not been served. This case is approaching the 3 ½ year mark since filing. The court records demonstrate that Plaintiff's counsel, Margaret Y. Tai, has a history of failing to appear at scheduled case management conferences (CMC). She has not appeared at a CMC calendared for March 2, 2023, July 3, 2023, December 16, 2024, January 21, 2025, and on April 21, 2025. At the April 21, 2025 CMC, the Court dismissed this case for Plaintiff's failure to appear and to prosecute this case.

On October 16, 2026, Plaintiff's counsel, Margaret Y. Tai, filed a Motion to Set Aside Order of Dismissal on behalf of her client, Katy Lopez, asserting excusable neglect pursuant to Cal. Code of Civ. Proc. §473(b).

Analyses

In California, the timeline to set aside a case is six months if the reason to set aside the dismissal is due to for mistake or excusable neglect by an attorney. (CCP § 473(b)) The relevant portions of Cal. Code of Civ. Proc. § 473(b) state:

"The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the

party through the party's mistake, inadvertence, surprise, or excusable neglect. []and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken."

Applied here, the last date to file this motion was October 21, 2026. Counsel's motion is timely, filed on October 16, 2026, well within six months of the Court's order dismissing this case. In her declaration, Counsel Tai had attributed "serious health conditions, difficult rehabilitation period, and mental confusion" as a result of a life-threatening diagnosis, which she claims were the cause of her non-appearance. After considering the reasons for her non-appearance, the Court finds in its discretion that Counsel Tai's actions amount to excusable neglect.

Ruling

Plaintiff's Motion is **granted**. The dismissal is set aside, and this case is re-opened. Plaintiff is ordered to serve the complaint to Defendant James Martin no later than thirty (30) days from the date of this order, and to file proof of service. The Court sets a Case Management Conference for March 27, 2026 at 8:30 a.m. Plaintiff's counsel is ordered to file a case management conference statement pursuant to court rules and to appear via Zoom to provide an update to the Court on the status of this case.

7. 9:00 AM CASE NUMBER: C23-02289
CASE NAME: PROGRESSIVE WEST INSURANCE COMPANY VS. CRAIG CROSLEY
HEARING ON SUMMARY MOTION
FILED BY: CROSLEY, CRAIG
TENTATIVE RULING:

Crosley's motion for summary judgment and Progressive's motion for leave to file a first amended complaint are **continued** to February 25, 2026 at 9:00 a.m.

The Court requests supplemental briefing limited to whether, for purposes of cancellation under 10 CCR section 2632.19(e), it is legally material that the missing information be characterized as a vehicle identification number (VIN) rather than another form of identifying information, where Progressive renewed the policy with knowledge that it lacked information contends was necessary to identify the vehicle for underwriting purposes. The parties shall also address whether, under these circumstances, Progressive's proposed amendment to allege cancellation based on the failure to provide a "VIN, serial number, or other identifying information of the model of the golf cart" would be futile.

Simultaneous supplemental briefs shall be limited to 10 pages each and shall be filed no later than February 18 at noon, with a courtesy copy to the department. As an exception to the department's normal email policy, the parties may email their courtesy copies to the department, provided the email clearly states that electronic submission has been authorized by the Court, and all counsel of record are copied on the email.

8. 9:00 AM CASE NUMBER: C23-02289
CASE NAME: PROGRESSIVE WEST INSURANCE COMPANY VS. CRAIG CROSLEY
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY PROGRESSIVE WEST INSURANCE SHOULD NOT
BE HELD IN CONTEMPT FOR FAILING TO COMPLY WITH THE COURT'S ORDER DATED 9/4/25
PERTAINING TO DISCOVERY
FILED BY:

TENTATIVE RULING:

The court set this order to show cause hearing on why Plaintiff Progressive West should not be held in contempt for failing to comply with the Court's discovery order dated September 4, 2025. Counsel are ordered to appear via zoom or in person for the hearing on this order to show cause on January 28, 2026 at 9:00 a.m.

The court is inclined to refer this matter regarding non-compliance with the court's September 4, 2025 order, and the hearings set for on April 29, 2026, and all subsequent discovery motions to Discovery Referee, Karl P. Molineaux, for further report and recommendation and consideration of monetary and terminating sanctions pursuant to Cal. Code of Civ. Proc. §§ 2023.010, 2023.030, et. seq.

9. 9:00 AM CASE NUMBER: C23-02289
CASE NAME: PROGRESSIVE WEST INSURANCE COMPANY VS. CRAIG CROSLEY
*HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT
FILED BY: PROGRESSIVE WEST INSURANCE COMPANY
TENTATIVE RULING:

Continued to February 25, 2026 at 9:00 a.m. for supplemental briefing. See Line 7.

10. 9:00 AM CASE NUMBER: C24-01485
CASE NAME: LAFAYETTE FEDERAL CREDIT UNION VS. SAMUEL FOSTER
*HEARING ON MOTION IN RE: ENTER JUDGMENT
FILED BY: LAFAYETTE FEDERAL CREDIT UNION
TENTATIVE RULING:

Summary

Plaintiff Lafayette Federal Credit Union's Motion to Enter Judgment Against Defendant Samuel Foster Pursuant to Cal. Code of Civ. Proc. § 664.6 is **granted**.

Background

On October 9, 2026, Plaintiff Lafayette Federal Credit Union ("Plaintiff") filed a motion to enter judgment against Defendant Samuel Forster ("Defendant") pursuant to a written stipulation for settlement. The stipulation provided for payment of settlement amounts, and for entry of judgment upon default pursuant to Cal. Code of Civ. Proc. § 664.6. The Motion was supported by a declaration, evidencing the signed stipulation and settlement agreement. Proof of services shows that Defendant

was served by mail and e-mail on October 9, 2026. To date, Defendant has not filed an opposition.

Analyses

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose Plaintiff’s Motion is deemed to be his consent to the granting of the motion.

Ruling

Plaintiff Lafayette Federal Credit Union’s Motion to Enter Judgment Against Defendant Samuel Foster Pursuant to Cal. Code of Civ. Proc. § 664.6 is **granted**. Plaintiff is ordered to prepare a proposed default judgment conforming to this order and e-file with the Court within five (5) days from the date of this hearing. The Court will retain jurisdiction over this matter for enforcement purposes pursuant to Cal. Code of Civ. Proc. § 664.6.

11. 9:00 AM CASE NUMBER: C24-03326
CASE NAME: ITRIA VENTURES LLC VS. ANKIT PANCHAL
***HEARING ON MOTION IN RE: ATTORNEYS FEES AND COSTS**
FILED BY: ITRIA VENTURES LLC

TENTATIVE RULING:

Summary

Plaintiff’s Motion for attorney’s fees & costs is **granted**.

Background

This action arises from Defendants’ breaches of written contracts, written guaranties and a settlement agreement. In 2023 Itria Ventures LLC (“Itria” or “Plaintiff”) and defendants Anderson Hospitality LLC; Ambe Hospitality LLC dba Days Inn and Suites; Yreka Hospitality LLC; Ambe Management Service, Inc.; Ankit Jagdishbhai Panchal; and Jagdishkumar Ranchhod Panchal (collectively “Defendants”) entered into four separate Receivables Sale Agreements dated March 24, 2023, June 21, 2023, August 28, 2023, and November 21, 2023 (collectively, the “RSAs”) and related guaranties that called for Itria to purchase a portion of merchant defendants’ accounts receivable, and for the individual defendants to guarantee the businesses’ compliance. Defendants subsequently breached the RSAs and guarantees.

In January 2024 the parties entered into a written Settlement Agreement (the “Settlement

Agreement”) and a Stipulation for Entry of Judgment (the “Stipulated Judgment”) in the event of default or breach. Defendants thereafter breached the Settlement Agreement. Itria filed a complaint on June 4, 2024. After the filing of that complaint, Defendants committed to abide by the settlement terms, so Plaintiff dismissed the complaint without prejudice. But thereafter Defendants breached the Settlement Agreement again, and Itria commenced the present action—with a new complaint—on December 9, 2024.

The Court granted Itria’s motion for an order entering the parties Stipulated Judgment on August 12, 2025, and entered the Stipulated Judgment on August 22, 2025, in the amount of \$204,280.76. (the “Judgment”). Notice of entry of the Judgment was served on August 22, 2025.

On October 7, 2025, Plaintiff” filed this Motion for attorney's fees & costs pursuant to Cal. Rules of Court (CRC) Rule No. 3.1702. Plaintiff’s Motion was supported by Notice, Memorandum of Points and Authorities and Declaration of Counsel Jason Takenouchi. The Motion was served on October 9, 2025. In this Motion, Plaintiff seeks to recover the attorneys’ fees and costs expended in this action. To date Plaintiff has incurred \$31,642.50 in attorneys’ fees and \$3,364.76 in costs.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), “all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing.” Nine court days before the hearing is January 14, 2026. No timely opposition was filed. Defendants filed an untimely opposition on January 20, 2026, which is six days late. No declaration accompanies Defendants’ late-filed opposition declaring facts that support good cause for Counsel’s failure to file the opposition timely. Accordingly, the Court does not consider the late-filed opposition.

Analyses

Counsel’s late opposition contains no explanation as to why he simply failed to comply with the deadline to file an opposition to Plaintiff’s motion for attorney's fees & costs. Unlike attorneys recently admitted to practice, Defendant’s Counsel cannot attribute inexperience for failing to file a timely opposition. Counsel has been in practice for over 50 years

A trial court has broad discretion to reject late-filed papers. (Cal. Rules of Court, rule 3.1300(d).) Plaintiff made no attempt to seek leave to file their opposition late and made no attempt to demonstrate good cause for having failed to adhere to the applicable deadline. *Rancho Mirage Country Club Homeowners Assn. v. Thomas B. Hazelbaker* (2016) 2 Cal.App.5th 252, 261-262. Moreover, a trial court does not abuse its discretion by refusing to consider late-filed papers when a party makes no attempt to seek leave to file papers late and does not attempt to show good cause for the late filing. *Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1146, which held party “provided no plausible explanation for its tardiness and the court acted within its discretion when it denied leave to file them.”

Ruling

Plaintiff’s Motion for attorney's fees & costs is granted the Court will execute the proposed order lodged by Plaintiffs on October 7, 2026. Defendants shall pay \$31,642.50 in attorneys’ fees and \$3,364.76 in costs no later than thirty (30) days from the date of this order.

12. 9:00 AM CASE NUMBER: C25-00559
CASE NAME: MARC TRAPANI VS. ANASTACIO CERO
***HEARING ON MOTION IN RE: ENTER JUDGMENT PER CCP 664.6**
FILED BY: TRAPANI, MARC
TENTATIVE RULING:

Summary

Plaintiff Marc Trapani's Motion for Judgment against Defendants Anastacio Cero, et. al., is **denied** without prejudice for lack of jurisdiction. Although Plaintiff's counsel represents that Defendants have been served and have entered into a settlement agreement resolving all claims, which has been allegedly breached, the Register of Actions does not contain proof of service which evidences that any of the Defendants have been served with the initial summons and complaint. As set forth below, the Court lacks personal jurisdiction over Defendants and cannot enter a judgment against them.

Analyses

Defendants to a litigation have a constitutional due process right to notice of the proceeding and an opportunity to be heard. That right was not observed here. While they entered into a settlement agreement, the Court's records do not contain proof of service of summons and complaint on the named Defendants. Thus, the Court does not have jurisdiction over the Defendants.

Without jurisdiction, this Court cannot approve a judgment pursuant to a settlement agreement that binds the parties in this case. Indeed, "A judgment is void if the defendant was never served with the summons and complaint." *Giorgio v. Synergy Management Group, LLC* (2014) 231 Cal.App.4th 241, 246, fn. 6.) The Court does not acquire personal jurisdiction over a defendant until "the time summons is served on him" as provided by statute. (Code Civ. Proc. § 410.50(a).)

Ruling

Plaintiff Marc Trapani's Motion for Judgment against Defendants pursuant to Cal. Code of Civ. Proc. § 664.6 is **denied without prejudice**.

13. 9:00 AM CASE NUMBER: C25-01357
CASE NAME: CITY OF CONCORD VS. COMCAST CABLE COMMUNICATIONS MANAGEMENT, LLC
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**
FILED RE: RYAN T. DOUGHERTY
FILED BY: COMCAST CABLE COMMUNICATIONS MANAGEMENT, LLC
TENTATIVE RULING:

Summary

Defendant Comcast Cable Communications Management, LLC and Comcast of California IX, Inc. (Collectively "Defendants" or "Comcast") filed a Notice of Hearing and Motion for Ryan T. Dougherty to be admitted as Counsel *Pro Hac Vice*. The Motion is **granted**. No appearance is required at the hearing on January 28, 2026.

Background

On October 3, 2025, Defendants filed Notice of Hearing, through Counsel Paige E. Adaskaveg and Mintz Levin, et. al, on Verified Application for Admission of Ryan T. Dougherty, Esq. to the Bar of this Court *Pro Hac Vice* ("Motion"). The Motion was supported by the Verified Application of Ryan T. Dougherty, Esq., and the Declaration of Paige E. Adaskaveg, Esq. The Proof of Service shows that service was accomplished via U.S. Mail on October, 2025. The Court did not receive timely oppositions from Plaintiff City of Concord.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Ryan Dougherty declares facts under penalty of perjury to support the application under CRC Rule 9.40. Counsel Dougherty is an attorney licensed to practice in the District of Columbia, the state courts of Maryland, Massachusetts, and before the federal courts United Court of Appeal, 1st Circuit, the District of Massachusetts, and the Eastern District of Michigan. He is employed by Mintz Levin's Washington D.C. office. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

No timely opposition was filed with the Court. Defendant's motion is **granted**. Ryan T. Dougherty, Esq, is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. Defendants Counsel are ordered to prepare and e-file a conforming order to signed by the Court within five days of the date of this hearing. No appearance is required at the hearing on January 28, 2026.

14. 9:00 AM CASE NUMBER: C25-01474
CASE NAME: FINWISE BANK VS. DEBRA VERNON
HEARING IN RE: APPLICATION FOR WRIT OF POSSESSION
FILED BY: FINWISE BANK

TENTATIVE RULING:

Summary

Plaintiff Finwise Bank's Application for Writ of Possession is **denied** without prejudice. This matter is **stayed** pending arbitration.

Background

On September 3, 2026, Plaintiff Finwise Bank ("Plaintiff") submitted an application for writ of possession seeking to recover the New Steinway model Spirio M Grand piano, serial #625576, with

ebony polish finish and its accompanying adjustable bench ("Piano") which is currently possessed by Defendant Debra Vernon ("Defendant") and is the subject of this breach of contract case. Plaintiff's application is accompanied by notice, Memorandum of Points and Authorities, Declaration of Glen Turnipseed. The Piano is located at Defendant's Danville home. This case has been referred to binding arbitration.

Defendant filed an opposition on January 16, 2026 informing the Court that this matter has been assigned to AAA for binding arbitration. Defendant claims that a writ of possession is premature and will serve to undermine the authority of the arbitrator. Defendant seeks a stay of this case, including the application for writ of possession for the Piano.

Plaintiff's reply brief points out to the Court that Defendant has not filed a request for stay, and that arbitration does not remove the court's authority to grant provisional remedies, such as their request for a writ of possession.

Analyses

The authority for the Court to issue a writ of possession is found in Cal. Code of Civ. Proc. §512.010, et. Seq. To prevail on a writ, the applicant must satisfy the requirements of Section 512.060, which requires the applicant to establish the probable validity of the plaintiff's claim to possession of the property.

Here, the Court is not convinced that Plaintiff has met that burden without further proceedings. While Plaintiff has attached copies of the loan agreement allegedly breached by Plaintiff, Defendant sets forth legitimate allegations that Plaintiff has not properly established valuation or has complied with the Truth in Lending act provisions. Prior to arbitration, where those matters will be determined, it is premature to conclude that Plaintiff has established a claim to possession of the Piano, which is superior to its right to recover monetary damages resulting from an alleged breach of a loan agreement.

As to the request for stay, the Court is persuaded by Defendant's arguments that a stay on these proceedings pending arbitration is warranted in order to avoid the waste of judicial resources, to prevent parallel litigation and to allow the arbitration to conclude.

After considering the papers submitted by the parties, and applying the relevant statutory and decisional authority, the Court finds good cause to deny this application.

Ruling

Plaintiff Finwise Bank's Application for Writ of Possession is **denied** without prejudice. This matter is **stayed** pending the conclusion of arbitration. The Court continues the case management conference to July 21, 2026 at 8:30 a.m.. The parties are requested to file a further case management conference statement to inform the Court about the status of arbitration.

15. 9:00 AM CASE NUMBER: C25-01869
CASE NAME: JOHN BENNETT STUDHOLME VS. SUBARU CORPORATION,
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: SUBARU OF AMERICA, INC.,

TENTATIVE RULING:

Defendant Subaru of America (“SOA”) brings the instant demurrer to the eighth cause of action for fraudulent concealment in the complaint of plaintiff John Bennett Studholme (“Plaintiff”). SOA argues that Plaintiff failed to plead sufficient facts related to knowledge of falsity, duty, and damages, and has not pled their fraud claim with the requisite level of specificity.

For the reasons discussed below, the Court sustains SOA’s demurrer to the eighth cause of action for fraudulent concealment. Plaintiff may file and serve an amended complaint within 30 days of entry of this order. (Code Civ. Proc., § 472b.)

Meet and Confer

The meet and confer requirement has been satisfied. (Laura D. Vawter Decl., ¶¶ 1-6; Code Civ Proc., § 430.41.)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “We also accept as true facts which may be inferred from those expressly alleged.” (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges “the sufficiency of the allegations in a complaint as a matter of law,” not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (*Id.* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a “court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice.” (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) “[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff.” (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

Background

The complaint here alleges nine claims: (1) Breach of Express Warranty—Song-Beverly Consumer Warranty Act; (2) Breach of Implied Warranty of Merchantability—Song-Beverly Consumer Warranty Act; (3) Breach of Implied Warranty of Fitness—Song-Beverly Consumer Warranty Act; (4) Failure to Make Available Parts and Literature; (5) Violation of Business and Professions Code § 17200; (6) Violation of Business and Professions Code § 17500; (7) Negligent Misrepresentation; (8) fraudulent concealment; and (9) negligent repair.

The complaint asserts claims against four defendants: (1) Subaru Corporation; (2) Subaru of America; (3) Good Son SM, LLC dba Santa Monica Subaru; and (4) Lithia of Walnut Creek, Inc. dba Diablo Subaru of Walnut Creek. Most of the claims are alleged against all defendants, except the eighth cause of action for fraudulent concealment, which is alleged only against Subaru Corporation and SOA, and the negligent repair claim, which is only asserted against defendant Good Son SM, LLC dba

Santa Monica Subaru.

According to the complaint, on June 9, 2025, Plaintiff leased a Subaru Ascent. (Complaint, ¶ 20.) Since then, Plaintiff has experienced mechanical as well as fit and finish issues with the vehicle. (*Id.* at ¶ 25.) Despite multiple attempts to fix the vehicle, it still suffers from the mechanical issues. (*Id.* at ¶¶ 26-28.)

Discussion

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.) “A duty to disclose a material fact can arise if . . . the material facts are known or accessible only to the defendant, and the defendant knows those facts are not known or reasonably discoverable by the plaintiff (i.e., exclusive knowledge). . .” (*Ibid.*) When there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship, under certain circumstances, suppression of a material fact is actionable. (*Hoffman v. 162 North Wolfe LLC* (2014) 228 Cal.App.4th 1178, 1186–1187.) A plaintiff must plead fraud, including concealment, with specificity. (*Linear Technology Corp. v. Applied Materials, Inc.* (2007) 152 Cal.App.4th 115, 132.)

Knowledge of Falsity

SOA argues that Plaintiff’s allegations at paragraphs 107 and 110, relating to knowledge of the “defective transmission,” are insufficient and conclusory. (Demurrer MPA, pp. 4:18-5:3.) Plaintiff argues that their allegations are sufficient. (Opposition, p. 7:8-14.) SOA does not address this argument in its reply. (Reply, pp. 1-5.)

Paragraph 107 of the complaint alleges, “Defendants were the only parties with knowledge of the defective transmission because that knowledge came from internal reports such as pre-release testing data, customer complaints made directly to the Defendants, and technical service bulletins. None of this information was available to the public, nor did Defendants publicly or privately disclose any of the information to Plaintiffs.” The Court finds this to be pleaded sufficiently.

Duty to Disclose

SOA argues that it “was not under a duty to disclose.” (Demurrer MPA, p. 5:5-6.) A duty to disclose can arise “when the defendant had exclusive knowledge of material facts not known to plaintiff.” (*Id.* at p. 5:6-8; *Heliotis v. Schuman* (1986) 181 Cal.App.3d 646, 651.) SOA asserts that “Plaintiff fails to state facts establishing any exclusive knowledge by SOA of any purported defect. Plaintiff’s allegations that SOA had knowledge of these facts is conclusory at best since Plaintiff merely vaguely reiterates that SOA had knowledge from pre-release testing data, customer complaints made directly to the Defendants, and technical service bulletins throughout the Complaint.” (*Id.* at p. 5:17-22.)

This Court disagrees because it finds that Plaintiff’s allegations on this topic are not conclusory. An example of a conclusory allegation on this would be an allegation that contained a legal conclusion

without any reference or connection to alleged facts, such as, “defendant had exclusive knowledge of material facts not known to Plaintiff.” Here, Plaintiff goes further than that and alleges that:

Defendants were the only parties with knowledge of the defective transmission because that knowledge came from internal reports such as pre-release testing data, customer complaints made directly to the Defendants, and technical service bulletins. None of this information was available to the public, nor did Defendants publicly or privately disclose any of the information to Plaintiffs. (Complaint, ¶ 107.)

The Court finds this to be a sufficient allegation of exclusive knowledge of material facts not known to Plaintiff. SOA offered some additional arguments on this topic in its reply that the Court will not address because they were not raised in the opening brief. “Points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before. To withhold a point until the closing brief deprives the respondent of the opportunity to answer it or requires the effort and delay of an additional brief by permission.” (*Campos v. Anderson* (1997) 57 Cal.App.4th 784, 794 n.3.)

Injury/Damages

SOA argues that Plaintiff has insufficiently alleged their injury/damages. (Demurrer MPA, p. 6:4-28.) At issue are the allegations from paragraph 112 of the complaint, which assert that “[i]f the Defendants and/or their agents publicly or privately disclosed the existence of the defective components to Plaintiffs at or before the sale, they would not have purchased the Subject Vehicle.” SOA argues that Plaintiff “cannot recover the purchase price under the fraud cause of action because Plaintiff seeks recovery of the same under the warranty causes of action.” (*Id.* at p. 6:19-21.) The Court does not agree with SOA on this because this is a demurrer to a complaint and “a party may plead in the alternative and may make inconsistent allegations.” (*Adams v. Paul* (1995) 11 Cal.4th 583, 593.) Further, “[i]nconsistencies between alternative counts cannot be attacked by demurrer, since each count stands on its own allegations, unaffected by those contained in other counts.” (*Penziner v. West American Finance Co.* (1933) 133 Cal.App.578, 582.)

Heightened Specificity

SOA argues that Plaintiff’s complaint “does not meet the required specificity to plead a cause of action for fraud.” (Demurrer MPA, p. 7:2-4.) SOA continues, “[t]he requirement of specificity when alleging fraud against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written . . . Plaintiff fails to allege any name, any statement . . . the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom [Plaintiff] spoke, what they said or wrote, and when it was said or written. . .” (*Id.* at pp. 7:24-8:8.)

Here, allegations as to who made the allegedly fraudulent representations, their authority to speak, what they said, to whom they spoke, etc., cannot logically be alleged in relation to the instant concealment cause of action, which is not based on fraudulent representations but concealment.

However, the California Supreme Court addressed this in a recent 2024 case, stating, “California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43.)

If the duty allegedly arose by virtue of the parties’ relationship and the defendant’s exclusive knowledge or access to certain facts, as . . . alleged here, the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) the defendant’s awareness of the materiality of those facts, (3) the inaccessibility of the facts to the plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant’s omission. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43-44.)

Plaintiff’s complaint does not contain specific allegations establishing all of the above elements. Numbers one, three, and four are satisfied by allegations at paragraphs 106 (“the defective transmission”), 107 (“None of this information was available to the public”), and 108 (“[b]efore the date of sale, on the date of sale, and on the date of each of the repair attempts. . .”), respectively. It does not appear that Plaintiff has pled specific allegations for elements (2) or (5), identified above. While Plaintiff pleads reliance on the alleged negligent misrepresentations in relation to their seventh cause of action, which are actual representations and not omissions, they do not plead reliance on any omission in relation to the eighth cause of action for fraud by concealment.

The Court concludes that Plaintiff has not properly pleaded their claim for fraudulent concealment.

Ruling

The Court sustains SOA’s demurrer to the eighth cause of action for fraudulent concealment. Plaintiff may file and serve an amended complaint within 30 days of entry of this order. (Code Civ. Proc., § 472b.)

16. 9:00 AM CASE NUMBER: C25-02015

CASE NAME: GOLRIZ HARRINGTON VS. SHAHNAZ NADERI

***HEARING ON MOTION IN RE: STRIKE CROSS-COMPLAINT OF SHAHNAZ NADERI PURSUANCE TO CA'S ANTI-SLAPP STATUTE**

FILED BY: HARRINGTON, GOLRIZ

TENTATIVE RULING:

Cross-Defendants Golriz and Sean Harrington’s special motion to strike the cross-complaint is **denied.**

The Harringtons agreed to lease a property from Naderi starting October 1, 2024. They allege that there were various habitability problems and after attempting to solve the problems (through

self-help and complaints to Naderi), they moved out on October 31, 2024. The Harringtons sued for breach of the warranty of habitability, breach of contract, breach of quiet enjoyment, nuisance, negligence and retaliation. Naderi filed a cross-complaint against the Harringtons, which is the subject of this motion.

Naderi's cross-complaint includes claims for (1) breach of contract, (2) novation and breach of contract and (3) negligence. The Harringtons filed this motion, seeking to strike the entire complaint under Code of Civil Procedure section 425.16.

"Resolution of an anti-SLAPP motion [or special motion to strike] involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation.] If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. We have described this second step as a 'summary-judgment-like procedure.' [Citation.]" (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384-385.)

"[M]ixed claims, which are based on allegations of both protected and unprotected activity, are subject to the first step of the anti-SLAPP analysis because a plaintiff cannot shield 'particular allegations of protected activity, themselves sufficient to give rise to a claim for relief, from a motion to strike by intermingling them with unprotected acts.' [Citations.]" (*Golden Gate Land Holdings LLC v. Direct Action Everywhere* (2022) 81 Cal.App.5th 82, 92; see also, *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1010.) In a mixed cause of action, the Court "should analyze each claim for relief—each act or set of acts supplying a basis for relief, of which there may be several in a single pleaded cause of action—to determine whether the acts are protected and, if so, whether the claim they give rise to has the requisite degree of merit to survive the motion." (*Bonni, supra*, 11 Cal.5th 995, 1010.)

Claims are not mixed where the allegations of protected activity merely provide context, without supporting a claim for recovery, and such incidental or extraneous allegations cannot be stricken under the anti-SLAPP statute. (*Golden Gate Land Holdings LLC, supra*, 81 Cal.App.5th at 92; *Baral, supra*, 1 Cal.5th at 394.)

Protected Activity

"At this first step, courts are to 'consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.' (*Park, supra*, 2 Cal.5th at p. 1063.) The defendant's burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity. (*Wilson, supra*, 7 Cal.5th at p. 884.)" (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.)

The Harringtons argue that this cross-complaint was filed in response to the Harringtons' complaint and therefore, it constitutes protected activity. "[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute. [Citation.] Moreover, that a cause of action arguably may have been

'triggered' by protected activity does not entail that it is one arising from such. [Citation.] In the anti-SLAPP context, the critical consideration is whether the cause of action is *based on* the defendant's protected free speech or petitioning activity." (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 89.)

Naderi argues that her cross-complaint is a compulsory cross-complaint and therefore cannot constitute protected activity. "A cross-complaint may be subject to an anti-SLAPP motion based on the plaintiff's right to petition. [Citation.] However, such a cross-complaint must allege a cause of action arising from the plaintiff's act of filing the complaint itself. [Citation.] That is, a cross-complaint will ordinarily not be considered a SLAPP suit because a cross-complaint usually arises from the underlying dispute alleged in the complaint, and not out of the litigation process itself; a defendant's oppressive litigation tactics alone will not trigger a dismissal under the anti-SLAPP statute. [Citation.]" (*Joslin v. Third Laguna Hills Mutual* (2020) 49 Cal.App.5th 366, 371-372.)

When ruling on the first prong of a special motion to strike, the Court first identifies protected activity and second it looks to each cause of action to determine if that claim arises from the protected activity.

Here, the Harringtons argue that the cross-complaint is based upon protected activity under sections 425.16(e)(1)-(2) because the cross-complaint is based upon the Harringtons filing this case. Naderi alleges that the Harringtons "were negligent in the execution of their owned planned and incomplete work; their actions constituted an anticipatory breach of Lease; and they breached their novation agreement related to Lease termination by virtue of the condition in which they surrendered the Property *and their commencement of this litigation.*" (Cross-comp. ¶10 (emphasis added).) The three causes of action incorporate these allegations.

The Harringtons argue that the following allegations constitute protected activity: the Harringtons' "wrongful demands", "filing of this litigation" and their "failure to proceed with the tenancy". The demands alleged in the cross-complaint include various requests for repairs or changes to the rental unit. The Harringtons have not shown how wrongful demands or ending a tenancy early would constitute protected activity.

The Harringtons argue that Naderi retaliated against them, which is a violation of Civil code section 1942.5(c). Civil Code section 1942.5 prevents a landlord from retaliating against a tenant in certain situations, but the Harringtons have not shown how this section applies in the anti-SLAPP context.

As to the filing of this lawsuit, "It is well established that filing a lawsuit is an exercise of a party's constitutional right of petition. [Citations.]" (*Chavez v. Mendoza* (2001) 94 Cal.App.4th 1083, 1087.) Thus, the Harringtons argue that the entire cross-complaint is based upon this protected activity. But the analysis is not that simple. For each cause of action, the Court must look to "the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability." (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1063.)

In the first cause of action for breach of contract, Naderi alleges that the parties entered into

a lease contract and Naderi provided possession to the Harringtons. The Harringtons did not perform under the lease and Naderi was damaged. This claim does not arise from the Harringtons decision to file a lawsuit. This claim arose in October 2024 when the Harringtons vacated the property. The Harringtons' argument that they had a right to vacate the property because of habitability issues is a factual dispute to be determined later. It does not change the nature of this claim. (Cross-comp. ¶13.)

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

The Court finds that the breach of contract claim is not based on protected activity and that the allegation regarding the Harringtons filing a lawsuit is incidental to this claim. Therefore, the motion to strike is denied as to the first cause of action.

In the second cause of action for novation and breach of contract, Naderi alleges when the Harringtons told Naderi that they were going to breach the lease, Naderi offered to allow the lease termination. She alleges that the parties entered into a novation of the lease, but then the Harringtons abandoned the property in damaged condition with incomplete and negligently executed work. (Cross-comp. ¶15.) In paragraph 10, Naderi alleges that the Harringtons "breached their novation agreement related to Lease termination by virtue of the condition in which they surrendered the Property and their commencement of this litigation." (Cross-comp. ¶10.)

"A novation is a substitution, by agreement, of a new obligation for an existing one, with intent to extinguish the latter. (Civ. Code, §§ 1530, 1532.) A novation is subject to the general rules governing contracts (Civ. Code, § 1532) and requires an intent to discharge the old contract, a mutual assent, and a consideration. (1 Witkin, Summary of Cal. Law (1960) Contracts, § 315, pp. 340-341.)" (*Klepper v. Hoover* (1971) 21 Cal.App.3d 460, 463.)

Here, the novation claim is based upon two types of breaches: (1) leaving the property in a damaged condition and (2) filing this lawsuit. As to the first breach, that claim is not based upon protected activity. The second breach, however, is based upon protected activity – the filing of this lawsuit. The Court finds that the novation claim is a mixed cause of action, involving both protected and unprotected activity.

Therefore, the motion to strike cause of action two is denied as to the portion of the claim based upon leaving the property in a damaged condition. The Court must proceed to prong two, on the claim that the Harringtons breached the novation contract by filing this litigation. (See, e.g. *Bonni*, *supra*, 11 Cal.5th 995, 1010.)

In the third cause of action for negligence, Naderi alleges that the Harringtons performed work on the property pursuant to the lease and Naderi's approval. She also alleges that "they owed a duty of due care to undertake and complete all of such work in workmanlike fashion consistent with construction custom and practice applicable to single family houses in the Danville area." Finally, she

alleges that they performed the work negligently and she was damaged. (Cross-comp. ¶17.)

The elements for negligence are a legal duty to use due care, breach of duty and the breach caused harm. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Here, the negligence claim is based on the Harringtons doing work that was not up to acceptable standards. The Court finds that the negligence claim is not based on protected activity and that the allegation regarding the Harringtons filing a lawsuit is incidental to this claim. Therefore, the motion to strike is denied as to the third cause of action

Probability of prevailing

On prong two, the Court must decide whether Naderi can show a probability of prevailing on the claim that the Harringtons breached the novation agreement with “commencement of this litigation.”

At this step, “the burden shifts to the [cross-complainant] to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. The court, without resolving evidentiary conflicts, must determine whether the plaintiff’s showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment. If not, the claim is stricken.” (*Baral, supra*, 1 Cal.5th at 396.)

In her declaration, Naderi states that “In mid-October, the Harringtons surprised me and sent a lengthy list of tasks that they demanded I undertake. They proposed a unilateral Lease termination if I refused to accept their demands. I responded by stating that I would agree to a Lease termination but no refund of any rent paid for the Lease term.... I gave the Harringtons the election to terminate the Lease with no refund related to rent during its brief term or to perform their Lease obligations and conform to its conditions. The Harringtons accepted the Lease termination agreement and we consequently agreed to ‘walk away’.” (Naderi dec. p.3:1-9.)

As discussed above, a novation is subject to the general rules governing contracts, which “requires an intent to discharge the old contract, a mutual assent, and a consideration.” (*Klepper v. Hoover* (1971) 21 Cal.App.3d 460, 463.) Naderi’s declaration is sufficient to show novation of the lease agreement. Naderi states that the parties agreed to “walk away” from the lease and then later the Harringtons sued Naderi. The Harringtons’ complaint shows that they are suing her for breach of the lease and related claims. These facts are sufficient to show Naderi’s probability of prevailing on a claim for breach of contract based upon novation of the lease agreement.

The Harringtons argue that Naderi did not allege termination of the lease agreement in her cross-complaint and that in any event there is no evidence of such an agreement. The Harringtons point to Gloriz Harrington’s declaration where she states that “No written or oral termination agreement was ever entered into by Sean Harrington or me.” (G. Harrington dec. ¶19.)

The Harringtons also point to *Alexander v. Angel* (1951) 37 Cal.2d 856, 860 to show that the novation claim fails where it is unsupported by “any written agreement, mutual assent, or consideration.” *Alexander* does not hold that a novation must be written. A novation is subject to the

general rules governing contracts (Civ. Code, § 1532), which means that in general “an oral novation may extinguish a written agreement.” (*Bush v. Vernon* (1955) 135 Cal.App.2d 33, 37 [286 P.2d 903].)

The Harringtons’ arguments fail. The cross-complaint alleges that the parties agreed to terminate the lease. (Cross-comp. ¶¶9, 10, 15.) The parties have each provided evidence, through their declarations, regarding whether they agreed to terminate the lease early. On prong two of a special motion to strike, the Court accepts the opposing party’s evidence as true. Thus, while there is a dispute of fact here, the Court accepts Naderi’s evidence for the purpose of showing a probability of prevailing on the merits.

Therefore, the Court finds that Naderi has shown a probability of prevailing on her novation – breach of contract claim based upon the Harringtons’ filing this lawsuit and the motion to strike those allegations is denied.

17. 9:00 AM CASE NUMBER: C25-02272
CASE NAME: GEORGE PAVANA VS. DAS POLLAYIL
***HEARING ON MOTION IN RE: FOR OSC RE SALE OF REAL PROPERTY**
FILED BY:
TENTATIVE RULING:

Continued to April 15, 2026. (See January 20, 2026 minute order.)

18. 9:00 AM CASE NUMBER: C25-02843
CASE NAME: JULIANO SILVA VS. JAMES RIVER INSURANCE
HEARING ON PETITION IN RE: PETITION TO ASSIGN CASE NUMBER AND TO SET REASONABLE DEPOSITION FEE
FILED BY: SILVA, JULIANO
TENTATIVE RULING:

This Petition to assign a case number and set a reasonable deposition fee, and the Motion currently scheduled for February 4, 2026 at 9:00 a.m. to Set Reasonable Deposition Fee for Dr. Robert Rovner are **continued**, *sua sponte*, to March 26, 2026 at 9:00 a.m. in Dept. 10 before Hon. Juila Campins. The hearings calendared for January 28, 2026 and February 4, 2026 at 9:00 a.m. are vacated. No appearance is required.

19. 9:00 AM CASE NUMBER: MSC20-02307
CASE NAME: MCNEAL VS LIBERTY MUTUAL GROUP
HEARING ON ORDER TO SHOW CAUSE IN RE:
FILED BY:
TENTATIVE RULING:

The hearing on this matter is **continued** pursuant to a request and Declaration submitted by Plaintiff Linton McNeal to March 18, 2026 at 9:00 a.m. The clerk of the court shall provide notice of continued hearing to Plaintiff Linton McNeal and to Defendant Kurita Jamison Pratt. No appearances are required on January 28, 2026.

20. 9:01 AM CASE NUMBER: C24-03379

CASE NAME: NAGESWARA VELINEDI VS. CAPITAL BENEFIT, INC.

*HEARING ON MOTION FOR DISCOVERY DEEM MATTERS ADMITTED AGAINST PLTF NAGESWARA RAO VELINEDI

FILED BY: CAPITAL BENEFIT, INC.

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 20 and 21. Both matters are Defendant's Motions to Deem Matters Admitted against the Plaintiffs Nageswara Velinedi and Sridevi Kota. Both Motions are **granted** as set forth herein.

Background

This case was filed on December 13, 2024, concerning Plaintiffs' allegations of Wrongful Foreclosure. On or about July 23, 2023, Defendants propounded Requests for Admissions and Requests for Admissions of Genuineness of Documents on both Plaintiffs. As of the date of these Motions were filed, Plaintiff has timely not responded to Defendants' requests. Subsequent to the filing of these Motions, on December 18, 2025, over a year after the initial requests were served, both Plaintiffs served responses.

There are two motions which are scheduled for hearing on January 28, 2026:

1. Defendants Capital Benefit, Inc.; Provident Trust Group FBO George S. Simmons Rollover IRA #3900656 and Lawrence E. Elkins And Norma J. Elkins, Trustees And Lawrence C. Henig, Trustee; Total Lender Solutions, Inc. (collectively "Defendants") motion for an order that the truth of all specified matters in Defendants Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants' Requests for Admission of Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Plaintiff, Nageswara Rao Velinedi ("Velinedi") on July 23, 2025, be deemed admitted.

Defendants seeks to obtain an order that (1) the truth of all specified matters in Defendant's Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants' Requests for Admission of the Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Plaintiff, Nageswara Rao Velinedi ("Velinedi") on July 23, 2025, be deemed admitted, (2) Sanctions in the amount of \$860.00 jointly and severally against Plaintiff and Plaintiff's Counsel, and (3) any other relief that the Court shall deem proper and just.

2. Defendants second motion is for an order that the truth of all specified matters in Defendant's Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants' Requests for Admission of Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Plaintiff, Sridevi Kota ("Kota") on July 23, 2025, be deemed admitted.

By this motion, Defendants seek to obtain the following order: (1) that the truth of all specified matters in Defendants' Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants' Requests for Admission of Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Kota on July 23, 2025, be deemed admitted, (2) sanctions in the amount of \$860.00 jointly and severally against Plaintiff and Plaintiff's Counsel, and (3) any other relief that the Court shall grant.

Both Motions are supported by Memorandum of Points and Authorities, Notices, Declaration of Counsel.

Plaintiffs filed timely opposition, supported by each Plaintiff's declaration. The oppositions do not contain a viable factual explanations for failing to comply with the Discovery Act. The oppositions are devoid of legal authority that supports any good faith argument providing any substantial justification for Plaintiffs' failure to prepare timely responses. Essentially, both Plaintiffs claim, in identical responses, that: "Plaintiff did not fully understand nor was it explained to him by his prior counsel that he was to provide written responses to the form and special interrogatories, request for admissions and request for production of documents propounded by Defendants ("Subject Discovery") which are the subject of the herein motion."

Analyses

Requests for Admissions may be used to (1) establish the truth of specified facts, (2) admit a legal conclusion, (3) determine a party's opinion relating to a fact, (4) settle a matter in controversy, and (5) admit the genuineness of documents. C.C.P. §2033.010; Weil and Brown, Cl. Prac. Guide: Civil Procedure Before Trial (TRG 2025) ¶¶8:1288 - 8:1301.2.

Admissions in response to RFA's are treated in effect as stipulations to the truthfulness of the matters admitted. No other evidence is necessary to establish the point and no contrary evidence is admissible without leave of court to withdraw or amend the response. Weil and Brown, Cal. Prac. Guide: Civil Procedure Before Trial (TRG 2025) ¶8:1388, citing C.C.P. §2033.300-410); C.C.P. § 2033.410(a); *Murillo v. Sup.Ct. (People)* (2006) 143 Cal.App.4th 730, 736.

Neither Plaintiff served responses to the basic questions contained in the requests for admission. Code Civ. Proc. § 2033.280 subd. (b) provides the following:

The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).

"To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person or attorney, and after opportunity for hearing may impose ... sanctions against anyone engaging in conduct that is a misuse of the discovery process..." Code Civ. Proc. § 2023.030.

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to

compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally. Further, sanctions are mandatory under the controlling statute.

After reviewing the papers submitted by counsel, and applying the foregoing statutory and decisional authorities, the Court finds good cause to grant both Motions and Sanctions.

Ruling

The Court grants the following Motions:

1. Defendants Capital Benefit, Inc.; Provident Trust Group FBO George S. Simmons Rollover IRA #3900656 and Lawrence E. Elkins And Norma J. Elkins, Trustees And Lawrence C. Henig, Trustee; Total Lender Solutions, Inc. (collectively “Defendants”) motion for an order that the truth of all specified matters in Defendants Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants’ Requests for Admission of Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Plaintiff, Nageswara Rao Velinedi (“Velinedi”) on July 23, 2025, is **granted** and each of the foregoing requests are deemed admitted.

The Court grants and issues this order that (1) the truth of all specified matters in Defendant’s Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants’ Requests for Admission of the Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Plaintiff, Nageswara Rao Velinedi (“Velinedi”) on July 23, 2025, are deemed admitted, (2) Sanctions in the amount of \$860.00 jointly and severally against Plaintiffs **but not against Plaintiff’s** current Counsel, and (4) Sanctions shall be paid no later than ten (10) days from the date of this Order.

2. Defendants second motion is for an order that the truth of all specified matters in Defendant’s Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants’ Requests for Admission of Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Plaintiff, Sridevi Kota (“Kota”) on July 23, 2025, is **granted** and each of the foregoing requests are deemed admitted.

The Court grants and issues this order: (1) that the truth of all specified matters in Defendants’ Request for Admissions, Set One, Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, and Defendants’ Requests for Admission of Genuineness of Documents, Set One, Nos. 1, 2, and 3 served on Kota on July 23, 2025, are deemed admitted, (2) Sanctions in the amount of \$860.00 jointly and severally against Plaintiffs **but not against** Plaintiff’s current Counsel, and (3) Sanctions shall be paid no later than ten (10) days from the date of this Order.

3. Defendants’ counsel shall prepare and efile a proposed order conforming to the foregoing and shall attach a copy of this tentative ruling to the proposed order.

***HEARING ON MOTION FOR DISCOVERY DEEM MATTERS ADMITTED AGAINST PLTF SRIDEVI KOTA
FILED BY: CAPITAL BENEFIT, INC.**

TENTATIVE RULING:

See Line No. 20.

22. 9:01 AM CASE NUMBER: C23-00098

CASE NAME: CARL PREWITT VS. TEXACO INC.

***HEARING ON MOTION FOR DISCOVERY ENTRY OF COMMISSION ORDERS FOR ISSUANCE OF OUT-
OF-STATE SUBPOENAS**

FILED BY: TEXACO INC.

TENTATIVE RULING:

Summary:

Defendant Texaco's Motion for Entry of a Commission Orders authorizing the issuance of out-of-state subpoenas to Plaintiff Carl Prewitt's medical providers in Alabama, including:

- 1) Grandview Medical Center
- 2) Grandview Diagnostic Center
- 3) Grandview Medical Group – Neurology
- 4) Grandview Medical Group - Neurosurgery
- 5) UAB Medicine Health Information Management
- 6) UAB St. Vincent's East
- 7) Nelms Pharmacy
- 8) Orthos Alabama Spine and Sports.

is **vacated** pursuant to Notice provided by Counsel Jennifer Bonneville on January 26, 2026. No appearance is necessary.

23. 9:01 AM CASE NUMBER: C23-02575

CASE NAME: MATTHEW ANDRADE VS. CHRIS PETLOCK

***HEARING ON MOTION FOR DISCOVERY MONETARY SANCTIONS IN THE AMOUNT OF \$46,343.15
FOR EGREGIOUS DISCOVERY MISCONDUCT**

FILED BY: ANDRADE, MATTHEW

TENTATIVE RULING:

The Court continues this Motion *sua sponte* to February 25, 2026 at 9:00 a.m. No appearance is required on January 28, 2026. The Parties are **ordered** to meet and confer by telephone, in-person or remote conference no later than February 15, 2026 to resolve this request for sanctions informally before the hearing of this motion. The Court orders the Parties to submit a declaration to the Court no later than five (5) days before the hearing to provide the court with a detailed account of the meet and confer discussions and any resolution of these issues.

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel and motion for sanctions should be considered a last resort when trying to prepare a case for

trial.” California Civil Discovery Practice (4th ed Cal CEB) §15.32.C.

Counsel are further admonished that Cal. Bus. & Prof. Code § 6086.7(a)(3) requires this Court to notify the State Bar of “the imposition of any judicial sanctions against an attorney, except sanctions for failure to make discovery or monetary sanctions of less than one thousand dollars (\$1,000.)” Cal. Bus. & Prof. Code § 6086.7(b) and Rule No. 10.609 also requires the court to notify the attorney involved that the matter has been referred to the State Bar. The Court interpret these rules liberally to mean that if the Court grants a discovery motion and sanctions and fees exceed \$1,000 against an attorney, the Court is required to report counsel to the State Bar. This is consistent with California Rules of Court Rule No. 10-609, Cal. Bus. & Prof. Code § 6086.7 and California Judges Association Formal Ethics Opinion No. 74 the mandatory duty to report the imposition of sanctions to the State Bar, as they exceed \$1,000. (*City of Los Angeles v. PWC LLP* (2024) 17 Cal.5th 46, 50). The Supreme Court held, in the *PWC* case, that the Discovery Act gives independent authority to the Courts to impose sanctions for discovery abuses and patterns of discovery abuses beyond specific provisions in the statutes.